

Approved as to
form only:
[Signature]
Date: 8/4/19

**MEMORANDUM OF UNDERSTANDING
BETWEEN THE CITY OF CHEYENNE, WYOMING, THE LARAMIE COUNTY
CONSERVATION DISTRICT, ROTARY CLUBS OF CHEYENNE,
AND FROG CREEK PARTNERS, LLC**

1. **Parties.** This Memorandum of Understanding ("MOU") is made and entered into by and between the City of Cheyenne, Wyoming, a municipal corporation (the "City"), the Laramie County Conservation District, a Wyoming Conservation District ("LCCD"), Rotary Clubs of Cheyenne ("Rotary"), and Frog Creek Partners, LLC and its agents ("Frog Creek Partners"). The City, the LCCD, Rotary and Frog Creek Partners are, at times, individually referred to as a "Party" and collectively referred to as the "Parties." The Parties' addresses are set forth in Section 8(i) below.
2. **Purpose.** Stormwater pollution is directly affecting water quality in Crow Creek, a perennial stream listed for sediment and E. coli on the Wyoming Department of Environment Quality (WDEQ) 303(d) impaired streams list. The LCCD and Rotary have purchased twelve (12) retrofit Gutter Bin filtration systems ("Gutter Bins") from Frog Creek Partners with a plan to install them downtown in the Capitol Basin (the "Property" as shown in Exhibit A). The purpose of this MOU is to set forth the City's terms and conditions by which the LCCD, Rotary and Frog Creek Partners may conduct installation and maintenance of the Gutter Bins (the "Project").
3. **Term of MOU.** This MOU shall commence upon the date last signed and executed by the duly authorized representatives of the Parties to this MOU and shall remain in full force and effect until the Project is completed, unless terminated earlier pursuant to Section 8(b) below.
4. **Payment.** No payment shall be made by any Party to any other Party as a result of this MOU.
5. **Responsibilities of the City.**
 - a. Subject to the conditions set forth in this MOU, the City permits the LCCD, Rotary and Frog Creek Partners to enter upon the Property subject to this MOU for purposes of conducting installation and maintenance of the Project.
 - b. The City agrees to consult with the LCCD, Rotary and Frog Creek Partners on matters relating to the Project.
 - c. The City must approve any and all final design plans relating to the Project.
 - d. The City will clean all stormwater catch basins in which Gutter Bins are to be installed prior to installation and on a schedule to be mutually agreed upon and weather permitting. Cleaning of catch basins shall not unreasonably delay the Project.
 - e. The City will accept captured pollutants from the Project at the City of Cheyenne Landfill located at 1461 Happy Jack Road at no cost to the other Parties. The pollutants will meet federal and state regulation for disposal and comply with Wyoming Department of Environmental Quality Happy Jack Landfill Lifetime Permit SHWD File #10.080.

f. The City will not unreasonably deny expansion of the Project if requested by the other parties to this MOU.

g. The City has no other responsibilities relating to the Project, including any financial responsibilities.

6. Responsibilities of LCCD.

a. LCCD agrees to provide the City with a proposed installation and maintenance schedule prior to engaging in any work on the Property, including any change in location of Gutter Bins.

b. LCCD may employ or use the services of Frog Creek Partners on the Project. The LCCD agrees to require Frog Creek Partners to provide proof of the following insurance coverages:

i. **Commercial General Liability Insurance:** For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the MOU.

ii. **Business Automobile Insurance:** Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the MOU.

iii. Any and all non-City employees of involved in the Project or other persons while engaged in the performance of any work or services required by the Project shall not be considered employees of the City, and any and all claims that may arise under the Workman's Compensation Act on behalf of said employees or other persons while so engaged shall be the sole obligation and responsibility of the employing party.

c. LCCD accepts responsibility for the actions of its employees, Rotary and Frog Creek Partners on the Project and agrees to indemnify and defend the City against any and all claims against the City arising out of the actions of these parties while engaged in any work relating to this MOU.

d. LCCD agrees to invite the City to all Project meetings.

e. Prior to installation of said Gutter Bins, LCCD agrees to obtain approval from the City on Project limits and maintenance.

f. All final sizing, installation and maintenance plans must conform to the applicable permitting, regulatory, or other legal requirements of the Wyoming Department of Environmental Quality.

7. **Special Provisions.**

a. The City reserves the right to monitor all activities related to this MOU that are performed by the LCCD, Rotary, and Frog Creek Partners. This shall include, but not be limited to, the right to examine or evaluate completed work or work in progress; to examine books, ledgers, documents, papers, and records pertaining to this MOU; and, to observe personnel in every phase of performance of the related work.

b. The Parties agree that the LCCD, Rotary, or Frog Creek Partners at no time will take ownership of the captured pollutants in the servicing of the Gutter Bins. The pollutants will remain the property of the City.

c. The Parties acknowledge that the purchase of the Gutter Bins is subject to Frog Creek Partners' general terms and conditions.

8. **General Provisions.**

a. **Amendments.** This MOU may be amended only in writing and upon mutual consent of the Parties. Any changes, modifications, revisions or amendments that are mutually agreed upon shall be incorporated by written instrument, executed, and signed by the Parties.

b. **Termination.** This MOU may be terminated, without cause, by any Party upon fifteen (15) days written notice, which notice shall be delivered by hand or by certified mail pursuant to the procedures set forth in Section 8(i) below.

c. **Applicable Law/Venue.** The construction, interpretation, and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this MOU and over the Parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

d. **Entirety of MOU.** This MOU represents the entire and integrated agreement between the Parties on the subject matter of the MOU and supersedes all prior negotiations, representations and agreements, whether written or oral.

e. **Prior Approval.** This MOU shall not be binding upon any Party unless this MOU has been reduced to writing before performance begins as described under the terms of this MOU, and unless this MOU is approved as to form by the City Attorney of Cheyenne, Wyoming or her representative.

f. **Severability.** Should any portion of this MOU be judicially determined to be illegal or unenforceable, the remainder of the MOU shall continue in full force and effect.

g. **Governmental/Sovereign Immunity.** The City and LCCD do not waive their governmental or sovereign immunities by entering into this MOU, including, but not limited to, those immunities provided by Wyo. Stat. § 1-39-101, *et seq.*, and fully retain all immunities and defenses provided by law with respect to any action based on or occurring as a result of this MOU.

h. **Indemnification.** Except as identified in Section 6(c) above, each Party to this MOU hereby acknowledges and agrees that it shall be responsible for its own acts arising out of this MOU. No Party agrees to defend or indemnify another Party.

i. **Notices.** Any notice or correspondence required to be given by the terms of this MOU shall be delivered by hand, or delivered by certified mail, postage prepaid, to the address of the respective Party below:

CITY: Michael Vinson
Engineering Department
2101 O'Neil Ave.
Cheyenne, WY 82001
(307) 637-6246
mvinson@cheyennecity.org

LCCD: Shaun Kirkwood
11221 US Hwy. 30
307-772-2600
kirkwood@lccdnet.org

ROTARY: Don Day
213 W. 2nd Ave.
Cheyenne, WY 82001
(307) 421-2343
don@dayweather.com

FROG CREEK PARTNERS: Brian Deurloo
800 West Yellowstone Hwy.
Casper, WY 82601
(307) 439-9570
brian@frogcreek.partners

j. **Successors and Assigns.** All of the terms, conditions, and provisions herein shall inure to the benefit of and be binding upon the Parties hereto and their respective successors and assigns.

k. **Assignment.** No Party shall assign this MOU without prior written consent of all Parties.

l. **Third Party Rights.** Nothing in this MOU shall be construed to give any rights or benefits to anyone other than the Parties.

m. **Titles Not Controlling.** Titles of paragraphs are for reference only and shall not be used to construe the language of the MOU.

n. **Waiver.** The waiver of any breach of any term or condition in the MOU shall not be deemed a waiver or any prior or subsequent breach.

o. **Signatures.** In witness whereof, the Parties to this MOU through their duly authorized representatives have executed this MOU on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this MOU as set forth herein.

City of Cheyenne, Wyoming

BY: _____

NAME: Marian J. Orr

TITLE: Mayor

DATE: _____

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

Laramie County Conservation District

BY: _____

NAME: _____

TITLE: _____

DATE: _____

Rotary Clubs of Cheyenne

BY: _____

NAME: _____

TITLE: _____

DATE: _____

Frog Creek Partners, LLC

BY: _____

NAME: _____

TITLE: _____

DATE: _____

Exhibit A

Proposed Gutter Bin Locations

Cheyenne, WY



(the southern Gutter Bin location is actually located at the corner of Dey & 17th)

Locations subject to change pending City approval